

26STCV02092 26STCV02092

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Case Number: 26STCV02092 Hearing Date: August 31, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Petition to Approve

Compromise of Disputed Claim of a Minor

The Petition to Approve Compromise of Disputed Claim of a Minor is continued.

BACKGROUND

Plaintiffs Carmen Farfan, Celeste Farfan, Jordan Farfan, Gerson Orellana, and Carlos Orellana Farfan filed this action against 427 Oxford LP and Ism Management Company LLC (Defendants). Carlos Orellana Farfan (Claimant) is a minor appearing by his guardian ad litem Celeste Farfan (Petitioner). Plaintiffs allege that Defendants allowed substandard conditions to persist at the rental unit where Plaintiffs resided.

The causes of action are: (1) Breach of Contract; (2) Breach of Implied Warranty of Habitability; (3) Nuisance; (4) Negligence; (5) Intentional Infliction of Emotional Distress; (6) Wrongful Eviction; and (7) Violation of the Los Angeles Tenant Anti-Harassment Ordinance.

Petitioner filed a Petition to Approve Compromise of Disputed Claim of a Minor. No Opposition was filed.

LEGAL STANDARD

Courts decide whether to approve a compromise by determining whether the petitioner is acting in the best interests of the minor. (See Code Civ. Proc., § 372, subd. (a); *Scruton v. Korean Air Lines Co.* (1995) 39 Cal.App.4th

1596, 1602-1603.) “[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor’s best interests.... [I]ts primary concern is whether the compromise is sufficient to provide for the minor’s injuries, care and treatment.” (Goldberg v. Superior Court (1994) 23 Cal.App.4th 1378, 1382.) The court exercises its discretion in approving a minor’s compromise, and in ordering distribution, case by case and tailored to the circumstances before it. (Christensen v. Superior Court (1987) 193 Cal.App.3d 139, 142-144.) “The trial court itself must develop and resolve any counterarguments on behalf of the minor, lest the attorney receive an excessive award of fees.” (Gonzalez v. Chen (2011) 197 Cal.App.4th 881, 888.)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court, rules 7.950, 7.951, and 7.952. (Cal. Rules of Court, rule 3.1384(a).) The petitioner must verify the petition. The petition must contain “a full disclosure of all information that has any bearing upon the reasonableness of the compromise.” (Cal. Rules of Court, rule 7.950.) The petition must also disclose whether the attorney represents any other party involved in the matter, what compensation the attorney has received or expects from any source, and “[t]he terms of any agreement between the petitioner and the attorney.” (Cal. Rules of Court, rule 7.951.)

Unless the court has approved the fee agreement in advance, the court must apply a reasonable fee standard to attorney fees payable from money paid for a minor’s benefit. The court must also consider the terms of the representation agreement, evaluating it on the facts and circumstances existing when the parties made it. (Cal. Rules of Court, rule 7.955(a).) Rule 7.955(b) lists fourteen nonexclusive factors bearing on reasonableness. A petition seeking approval of a fee “must include a declaration from the attorney that addresses the factors listed in (b) that are applicable to the matter before the court.” (Cal. Rules of Court, rule 7.955(c).)

Where no guardianship of the minor’s estate exists, the balance remaining after court-approved expenses, costs, and fees must be paid or delivered as Probate Code sections 3610 and 3611 provide. (Prob. Code, §§ 3601, subd. (a), 3610.)

ANALYSIS

I. Settlement

Petitioner asks the Court to approve a compromise of Claimant's claims for \$4,500.00, offered by the two Defendants in equal shares of \$2,250.00 and payable in one lump sum. (Pet., items 10a-10c.) Petitioner represents having made a careful and diligent inquiry and investigation into the facts and circumstances of the incident, the responsibility for it, and the nature, extent, and seriousness of Claimant's injuries. Petitioner understands that a compromise approved and consummated forecloses any further recovery from the settling defendants. (Pet., item 9.)

Claimant's \$4,500.00 is one share of a settlement resolving the claims of all five Plaintiffs. Defendants have offered \$110,500.00 to persons other than Claimant, apportioned in equal shares of \$27,625.00 to each of the four adult Plaintiffs. (Pet., items 11b(1), 11b(5).) Claimant's share is 3.9 percent of the total settlement.

Attachment 11b(6) gives the reasons for the division. It states that "[a] substantial part of the alleged damages were for rent abatement, property damages and statutory damages related to the lease of the Subject Property," and that those damages "accrued only to the adult family members." Claimant, it states, "did not have physical injuries and had no claims for rent abatement, property damage, or statutory damages," and Claimant's "potential damages are for the pain and suffering of living with the substandard conditions of the rental unit." (Attachment 11b(6).)

Here, much of that account matches the record. Claimant was born on November 17, 2023, and the conditions the Petition describes ran from February 2018 to December 2024. Claimant therefore lived with them for roughly thirteen months, and nearly six years of the period preceded his birth. (Pet., items 2b, 4a.) Claimant sustained no injuries and received no care or treatment, and Attachment 8 reports no medical treatment in this matter. (Pet., items 6, 7; Attachment 8.)

However, the Complaint is inconsistent with the Petition's assertion that Claimant lacked any statutory damages. The Seventh Cause of Action, for violation of the Los Angeles Tenant Anti-Harassment Ordinance, is pleaded by all Plaintiffs against all Defendants. It alleges that Defendants violated the ordinance by refusing requested repairs and by intentionally disturbing a tenant's peace and quiet, that Plaintiffs are entitled to up to \$10,000.00 per violation. (Compl., ¶¶ 44-45.) The prayer asks for statutory damages of not

less than \$50,000.00. (Compl., prayer, ¶ 4.)

Read as an account of the pleading, it is inaccurate, because the Complaint asserts a statutory damages claim on Claimant's behalf. Read as a valuation, meaning that Claimant's ordinance claim is worth nothing, it is a conclusion with no stated basis. The Court has no occasion to answer whether Claimant is an aggrieved tenant within the ordinance or what the claim would be worth, because the Petition never engages those questions.

The Court does not find \$4,500.00 is necessarily inadequate. It finds only that the Petition does not provide the information rule 7.950 requires to evaluate the sum, because it describes Claimant's claims in terms his own Complaint contradicts.

To fix this and the additional defects identified below, the Court will continue the matter at a date to be set at the hearing.

II. Disclosure

This Petition does not meet the disclosure requirements of rules 7.950 and 7.951.

Petitioner marked the entry at item 11b(2) stating that Petitioner "has a claim against the recovery of the claimant," apart from the reimbursement of fees and expenses listed at item 14. (Pet., item 11b(2).) The form directs an explanation in Attachment 11b(2), and none was filed.

Items 15, 16f, and 18b(5) put the balance for Claimant at \$3,375.00 and ask that \$3,375.00 be delivered to a parent. (Pet., items 15, 16f, 18b(5).) The form calls for Attachment 18b(5) to identify the parent and the property to be delivered. That attachment directs "\$1,875 to CELESTE FARFAN ... for CARLOS ORELLANA FARFAN." (Attachment 18b(5).) Nothing accounts for the other \$1,500.00.

III. Attorney Fees

Petitioner asks the Court to approve \$1,125.00 in attorney fees out of Claimant's recovery, twenty-five percent of the \$4,500.00 gross. (Pet., items 13a, 16c.)

California Rules of Court, rule 7.955(c) requires "a declaration from the

attorney that addresses the factors listed in [Cal. Rules of Court, rule 7.955(b)] that are applicable to the matter before the court.” The declaration filed as Attachment 13a does not address each of the relevant factors. It states that the declarant represents all Plaintiffs and works under an attorney who has handled habitability matters since 2006 and who receives referrals from other lawyers and from government agencies. It then requests \$1,125.00 and states a belief that the sum “is very reasonable for the amount of work done and the services provided to obtain this recovery for the minor.” (Hinds Decl., ¶¶ 1-3.)

The Court does not deny the request, and a supplemental declaration may be provided with the amended Petition.

IV. Further Proceedings

Petitioner is to file and serve an amended Petition to Approve Compromise of Disputed Claim of a Minor, verified as rule 7.950 requires, within 20 days of the hearing.

The amended Petition should supply (1) Petitioner’s valuation of each claim the Complaint pleads on Claimant’s behalf, the ordinance claim included, with the basis for each stated; (2) the explanation Attachment 11b(2) calls for, and a reconciliation of the \$3,375.00 stated at items 15, 16f, and 18b(5) with the \$1,875.00 stated in Attachment 18b(5); and (3) a declaration addressing the applicable rule 7.955(b) factors.

CONCLUSION

The Petition to Approve Compromise of Disputed Claim of a Minor is continued to a date the Court will set in consultation with counsel.